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File No.: EXP202301043

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure conducted by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: The GUARDIA CIVIL – PUESTO DE TARREGA (hereinafter, the complainant), on December 27, 2022, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against A.A.A. with NIF ***NIF.1 (hereinafter, the accused party), for the installation of a video surveillance system located at ***ADDRESS.1, ***TOWN.1, with indications of a possible violation of the provisions of personal data protection regulations.

The reasons supporting the complaint are as follows:

The complainant provides a Complaint Record dated December 27, 2022, which reveals that the accused party is responsible for an establishment that has an operational video surveillance system inside, without having at least one sign or informative poster in a sufficiently visible location in the video surveillance area; nor does it have printed materials detailing the information required in Articles 15 to 22 of the GDPR, or where to obtain more information about the processing of personal data.

The documents provided are:

- Complaint Record.
- Inspection Report carried out by the Guardia Civil.

SECOND: The accused party had been sent a letter indicating the obligations it had regarding data protection and video surveillance, having been notified on November 25, 2019, prior to the submission of a Report from the GUARDIA CIVIL - PUESTO DE TARREGA regarding the same facts.

THIRD: On March 24, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the accused party for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5.b) of the GDPR.

FOURTH: The aforementioned initiation agreement was notified in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the accused party.

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Article 64.2.f) of the LPACAP - a provision of which the accused party was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement about the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts underlying the accusation, the infringement of the GDPR attributed to the accused party, and the sanction that could be imposed. Therefore, considering that the accused party has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts as proven in this procedure,

PROVEN FACTS

FIRST: The complainant provides a Complaint Record dated December 27, 2022, in which it states the existence of video surveillance cameras in the establishment of the accused party, located at ***ADDRESS.1, ***TOWN.1, without having the required informative signs in the video surveillance

area, nor having the rest of the information required by the GDPR available to the affected parties.

SECOND: The Spanish Agency for Data Protection has notified the accused party of the agreement to open the present sanctioning procedure, without the accused party having submitted allegations and evidence that contradict the reported facts.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

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II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, thus their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

III

Infringement

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that individuals or legal entities, whether public or private, may carry out the processing of images through systems of cameras or video cameras for the purpose of preserving the safety of individuals and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the interested parties with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this sense, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a place easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

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This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether interior or exterior. In the event that the monitored space has several entrances, such a sign indicating the video-monitored area must be placed at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The aim is to make the context of the surveillance clear.

IV

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Individuals or legal entities, whether public or private, may establish a video surveillance system for the purpose of preserving the safety of individuals and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved by other means that are less intrusive to the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained cannot be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD, must be fulfilled in the terms already indicated.

4.- Images of public roads cannot be captured, since the processing of images in public places, unless there is government authorization, can only be carried out by the Security Forces and Corps.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. And, in such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a justified cause duly accredited, nor may they affect the privacy of passersby freely moving through the area.

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The placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without just cause is therefore not permitted.

In no case shall the use of surveillance practices extend beyond the environment subject to the installation, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Images may not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

It is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

5.- Images may be retained for a maximum period of one month, except in cases where they must be

retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording was obtained.

6.- The responsible party must maintain a record of activities related to the treatments carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The responsible party must conduct a risk analysis or, where applicable, a data protection impact assessment, to detect risks arising from the implementation of the video surveillance system, evaluate them, and, where appropriate, adopt the appropriate security measures.

8.- When a security breach occurs that affects the camera treatments for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Agency for Data Protection provides access through its website [<https://www.aepd.es>] to:
- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),

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- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

It is also of interest, in cases of conducting low-risk data treatments, the free tool Facilita (in the "Guides and tools" section), which, through specific questions, allows the responsible party to assess their situation regarding the personal data processing they carry out, and, where applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

V

Administrative Infraction

In accordance with the proven facts established during the sanctioning procedure, it is considered that the facts presented violate the provisions of Article 13 of the GDPR, constituting an infraction classified under Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

b) the rights of the data subjects under Articles 12 to 22; (...).”

For the purposes of the statute of limitations for infractions, the infraction indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infractions that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law.”

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specified manner and within a specified timeframe;

(...)

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case."

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

With respect to the infringement of Article 13 of the GDPR, considering the facts presented and without prejudice to what results from the instruction of the procedure, it is considered that the sanction that would correspond to be imposed is an administrative fine.

The fine imposed must be, in each case, individual, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR.

In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and detriment suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct pursuant to Article 40 or to approved certification mechanisms pursuant to Article 42,

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement." In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," provides:

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party could have included the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject."

The balance of the circumstances considered, with respect to the infringement committed by violating the provisions of Article 13 of the GDPR, allows for an initial assessment of a fine of 300 euros (three hundred euros).

VII

Measures

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

It is warned that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to open a further administrative sanctioning procedure.

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Conclusion

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A. with NIF ***NIF.1, for an infringement of Article 13 of the GDPR, classified under Article 83.5.b) of the GDPR, a fine of €300 (three hundred euros).

SECOND: TO ORDER A.A.A. with NIF ***NIF.1 to, pursuant to Article 58.2.d) of the GDPR, within ten working days, adopt the following measures:

- Certify that the informational device has been placed in the video-monitored areas (at least, the existence of processing, the identity of the controller, and the possibility of exercising the rights provided in those provisions must be identified), placing this device in a sufficiently visible location, both in open and closed spaces.

- Certify that the information referred to in Articles 13 and 14 of the GDPR is available to the affected parties.

THIRD: NOTIFY this resolution to A.A.A. with NIF ***NIF.1.

FOURTH: Warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that certifies the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

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